

1 **SENATE FLOOR VERSION**

2 April 9, 2026

3 ENGROSSED HOUSE
4 BILL NO. 4321

By: Kendrix of the House

5 and

6 Alvord of the Senate

7
8 An Act relating to the Elevator Safety Act; amending
9 59 O.S. 2021, Section 3023.4, which relates to
10 enforcing the Elevator Safety Act; prohibiting
retroactive application without safety exemption; and
providing an effective date.

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12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 59 O.S. 2021, Section 3023.4, is
14 amended to read as follows:

15 Section 3023.4. A. It shall be the duty of the Department of
16 Labor to develop an enforcement program which will ensure compliance
17 with regulations and requirements referenced in this chapter. An
18 enforcement program may include, but is not limited to, regulations
19 for identification of property locations which are subject to the
20 regulations and requirements; issuing notifications to violating
21 property owners or operators; random on-site inspections and tests
22 on existing installations; witnessing periodic inspections and
23 testing in order to ensure satisfactory performance by licensed
24 persons, sole proprietors, firms or corporations; and assisting in

1 the development of public awareness programs. The Department shall
2 not retroactively apply new rules and standards to existing
3 structures unless the Department produces written findings,
4 supported by documented evidence, that the structure presents
5 obvious safety hazards.

6 B. Any person may request an investigation into an alleged
7 violation of this chapter by giving notice to the Department of
8 Labor of such violation or danger. The notice shall be in writing,
9 shall set forth with reasonable particularity the grounds for the
10 notice, and shall be signed by the person making the request.

11 C. Upon receipt of a notification, if the Commissioner
12 determines that there are reasonable grounds to believe that a
13 violation or danger exists, the Commissioner shall cause to be made
14 an investigation in accordance with this chapter as soon as
15 practicable to determine if such violation or danger exists. If the
16 Commissioner determines that there are no reasonable grounds to
17 believe that a violation or danger exists, the Department of Labor
18 shall notify the party in writing of such determination.

19 SECTION 2. This act shall become effective November 1, 2026.

20 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
21 April 9, 2026 - DO PASS
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